

23STCV06652 23STCV06652

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-31

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Case Number: 23STCV06652 Hearing Date: August 31, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Amitiss Nasiri

;

Plaintiff,

vs.

Miod and Company, LLP

, et al.,

Defendants.

Case No.:

23STCV06652

Hearing Date:

August 31, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Motion

to Compel Responses to Requests for Admissions

(2) Motion

to Compel Responses to Form Interrogatories

(3) Motion

to Compel Responses to Special Interrogatories

(4) Motion

to Compel Responses to Requests for Production

MOVING PARTY: Defendant MIOD and Company, LLP

RESPONDING

PARTY: No response.

(1) Motion

to Compel Responses to Requests for Admissions

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to Compel Responses to Form Interrogatories

(3) Motion

to Compel Responses to Special Interrogatories

(4) Motion

to Compel Responses to Requests for Production

The court considered the moving
papers filed in connection with these motions. No oppositions were filed.

DISCUSSION

Defendant MIOD

and Company, LLP ("Defendant") moves the court for orders compelling Plaintiff Amitiss Nasiri ("Plaintiff") to provide responses to (1) requests for admissions; (2) form interrogatories; (3) special interrogatories, and (4) requests for production, and for sanctions to Defendant and against Plaintiff.

First, the Code

of Civil Procedure does not authorize a motion to compel responses to requests for admissions. Instead, the proper motion is a motion deeming the truth of the matters stated in the requests for admissions as admitted. (Code Civ. Proc., § 2033.280.)

Second, all four

of Defendant's motions are untimely. The last date the motions could be heard was July 14, 2026, 15 days before the previous July 29, 2026 trial date. (Code Civ. Proc. § 2024.020 subd. (a); Stipulation entered February 24, 2026 [setting trial and continuing cutoff dates].) The court's continuance of trial at the July 16, 2026 Final Status Conference did not reopen discovery. (Minute Order entered July 16, 2026.) Defendant's motions are beyond the discovery motion cutoff and must be denied.

ORDER

The court DENIES

defendant MIOD and Company, LLP's motions to compel responses.

The court orders plaintiff

Amitiss Nasiri to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 31, 2026

Robert B. Broadbelt III

Judge of the Superior Court